

BEFORE THE FEDERAL MARITIME COMMISSION

CHINA UNITED LINES, LTD,

Complainant,

v.

AMAZON.COM SERVICES LLC,

AMAZON LOGISTICS INC.,

and

BEIJING CENTURY JOYO COURIER SERVICE CO.,
LTD.,

Respondents.

DOCKET NO. 25-04

**RESPONDENTS' OPPOSITION TO COMPLAINANT'S MOTION FOR PROTECTIVE
ORDER PRECLUDING RESPONDENT AMAZON.COM SERVICES LLC'S JANUARY
6, 2026 RULE 143(b)(6) NOTICE OF VIDEOTAPED DEPOSITION ON TOPIC NO. 4**

Respondents Amazon.com Services LLC (“Amazon”), Amazon Logistics, Inc. (“ALI”), and Beijing Century Joyo Courier Service Co., Ltd. (“BCJ”), oppose the Motion of Complainant China United Lines, Ltd. (“China United”) for a Protective Order. The Order would preclude Amazon from obtaining testimony of a China United corporate witness as to China United’s factual basis for asserting that Amazon¹ engaged in acts of deceit, concealment, and fraud in its dealings with China United. Amazon’s position, which it believes is expressly confirmed in Your Honor’s June 6, 2025 Order dismissing four of the five counts of the Amended Complaint, is that China United must show fraud or concealment as an element of the single remaining count.

¹ The Amended Complaint named ALI and BCJ as Respondents for the purpose of attempting to obtain jurisdiction over claims that have now been dismissed, and this proceeding now focusses on alleged misconduct of Amazon. China United’s corporate witness has already confirmed that neither ALI nor BCJ took any action concerning the contract termination that is the basis of China United’s Amended Complaint. China United’s parallel action in the Southern District of New York names only Amazon as a defendant.

China United has refused to provide a witness to testify as to whether China United has any factual information to support a showing of fraud or concealment. China United has even refused to answer a contention interrogatory on the subject, which its own motion presented as the preferred course of action. The Motion for Protective Order should be denied.

1. China United's Opposition Argues That the Information Amazon Seeks Is Better Provided in a Contention Interrogatory, But China United Now Refuses to Answer Such an Interrogatory.

China United's main argument in support of its refusal to provide a witness on the topic at issue is that it would be less burdensome and more appropriate for China United to provide the information in response to a contention interrogatory. Mot. at 4-6. Taking China United at its word, Amazon proposed resolving the motion on the basis of an agreement to answer such an interrogatory. See Ex. 1 at 7-8.² China United's counsel responded that he "appreciate[d] the practical proposed solution, stated that "CUL is open to agreeing to answer [this topic] if phrased as an appropriate single interrogatory," and asked for a "proposal on the timing of such an interrogatory." *Id.* at 7. Amazon counsel responded that the "interrogatory would ask the factual basis for any contention that Amazon acted in any way that was fraudulent, deceitful, or concealed the truth." *Id.* at 6.

At the time of Amazon's response providing the requested language of a contention interrogatory, Your Honor had just issued an order directing the parties to advise "if they have resolved any of the issues raised" in Complainant's Motion for Protective Order, or in another Motion Complainant has filed concerning Amazon's designation of certain discovery materials as Attorney's Eyes Only ("AEO"). Jan. 16, 2026, Order at 1. In the email proposing the contention interrogatory language, Amazon's counsel thus also asked to "explore with [China United counsel]

² Exhibit 1 is the entire discussion between the parties on this issue.

the potential to resolve your AEO motion.” Ex. 1 at 6. In response, China United’s counsel did not raise any objection to the wording of the proposed interrogatory, asked “the timing . . . for that interrogatory,” and expressed willingness to take an AEO proposal to China United. *Id.* at 5. Amazon counsel then proposed Monday, January 26th as a response date for the contention interrogatory. *Id.* at 4-5. That timing would allow Amazon to review the answer before the remaining depositions of China United witnesses now scheduled to begin February 2. China United’s counsel responded he was “not sure that your proposed timing works,” because “there’s a lot of discovery to undertake until that interrogatory can be fully answered,” but did not specify what that discovery was, or why a prompt answer could not be given and then supplemented if necessary given that the information, if it exists, is fundamental to China United’s claim. *Id.* at 4. Amazon counsel asked for a counterproposal as to timing. *Id.* at 3. All of this took place last Friday, January 16.

On January 19, having not heard back, Amazon counsel followed up. *Id.* at 3. Rather than providing a date or any other follow-up to the discussions the parties had been having over several days as to the contention interrogatory, China United’s counsel simply stated that China United wanted Your Honor to decide the Motion as the “clients see this issue differently.” *Id.* at 2.

2. There Is No Basis for China United’s Position That It Can Shield Its Corporate Witness from Testifying to the Factual Basis for a Necessary Element of Its Claim.

The main basis for China United’s Motion is that Amazon should seek the information as to the basis for China United’s claims through a contention interrogatory rather than a corporate witness deposition. China United’s sincerity in arguing this position is called into question by its subsequent refusal to answer even a contention interrogatory on the matter. In any event, China United’s position is in error.

China United claims that the deposition topic is improper because it would require its corporate witness to “marshal the evidence.” Mot. at 6. A corporate deposition requires a witness to testify to evidence in the corporation’s possession that might be outside that witness’s own personal knowledge. *See, e.g., Brazos River Auth. v. GE Ionics, Inc.*, 469 F.3d 416, 433 (5th Cir. 2006) (“[T]he duty to present and prepare a Rule 30(b)(6) designee goes beyond matters personally known to that designee or to matters in which that designee was personally involved”) (citation omitted). So this alone cannot be a valid basis to object.

China United also asserts that its witnesses would improperly be required to go through all of Amazon’s documents to compile the case against Amazon on this point. Mot. at 5-6. As was made clear to China United’s counsel before the deposition, however, Amazon is not seeking the witness’s assistance to marshal evidence from Amazon’s documents; it is asking for information within CUL’s *independent* knowledge that shows any evidence of the fraud, concealment, or deceit it claims Amazon engaged in. *See* Declaration of Bryce M. Cullinane in Support of Motion for Protective Order, Ex. B, at 1. In *Ierardi v. Lorillard, Inc.*, No. CIV. A. 90-7049, 1991 WL 158911 at *1 (E.D. Pa. Aug. 13, 1991), the court rejected the argument that a contention interrogatory should substitute for a Rule 30(b)(6) deposition, noting that the “deposition process provides a means to obtain more complete information and is, therefore, favored,” and that the deposition notices “do not request any information regarding H & V’s legal contentions, but rather relate to H & V’s knowledge of facts.” If China United has no such knowledge, and is trying to make its case of fraud and concealment out of its characterizations of Amazon’s documents, the witness can testify to that. *See id.* (“Answers to interrogatories, however, are an inadequate substitute for deposition testimony pursuant to Rule 30(b)(6)” as to a corporation’s claimed lack of knowledge on a subject.)

Amazon further respectfully submits that there is another reason peculiar to this case as to why the deposition of a China United corporate witness on this topic, rather than an interrogatory response crafted by counsel, is particularly important. China United's Amended Complaint said nothing about fraud, deceit, or concealment, much less pled it with the specificity generally required in civil cases. When Amazon pointed out in the motion to dismiss briefing that fraud or concealment is required to state a claim under 46 U.S.C. § 41102(a), citing undisputed precedent that Your Honor quoted in the June 6 Order,³ China United's then counsel came up with the theory Your Honor referenced in that opinion, that it might show fraud if Amazon "entered into the service contract with the intent of obtaining lower shipping rates and then terminating the contract without paying liquidated damages agreed to if the market shipping rates fell." June 6 Order at 12.

China United's current counsel has now expressly rejected the very theory that the June 6 Order articulated as the basis China United had provided to make the required showing under 46 U.S.C. § 41102(a). *See* Ex. 2 at 6 ("CUL no longer asserts that Amazon entered into the service contract with the intent of terminating and not paying the shortfall penalty.").⁴ China United is now trying to turn the back and forth of the contract dispute into some kind of showing of fraud. Amazon has every right to try to pin down a corporate witness as to what China United is now asserting to be the factual basis of the extraordinary allegation that Amazon engaged in fraud in its dealings with the company. *See Radian Asset Assur., Inc. v. Coll. of the Christian Bros. of New Mexico*, 273 F.R.D. 689 (D.N.M. 2011) (denying defendant's request for protective order to

³ June 6 Order at 11 ("As explained by the Eleventh Circuit: It is undisputed that fraud or concealment is a necessary ingredient in the proof of an unjust or unfair device or means. *Capitol Transportation, Inc. v. United States*, 612 F.2d 1312 (1st Cir. 1979)").

⁴ In response to the letter that is Exhibit 2, Amazon issued a revised notice that replaced the topic seeking factual information on this now-abandoned theory with the topic seeking information on fraud, deceit, and concealment more generally that is the subject of the Motion.

limit 30(b)(6) deposition where plaintiff sought to inquire about the factual basis for the College's affirmative defenses and counterclaims).

The court in *Radian* saw “no great problem with allowing overlap between the sorts of information obtained through contention interrogatories and 30(b)(6) depositions. While counsel will have to carefully prepare the 30(b)(6) representative, counsel must always do so. Moreover, the 30(b)(6) representative will have counsel present to protect privileged matters.” 273 F.R.D. at 692. Accordingly, the motion for a protective order was denied. *See also U.S. E.E.O.C. v. Caesars Entm't, Inc.*, 237 F.R.D. 428, 432–34 (D. Nev. 2006) (denying “defendant's request for a protective order to limit the scope of Rule 30(b)(6) deposition questioning to preclude inquiry into the factual bases for defendant's asserted position statements and affirmative defenses”).

3. China United's Attempt to Use Its Motion to Argue the Merits of Its Case Is Improper.

Before addressing the merits of its Motion, China United engages in a one-sided and misleading presentation of its side of the case that is irrelevant to the present Motion. It is of course telling that China United prefers to do so in an unsworn filing rather than through the sworn testimony of a corporate witness or even a sworn interrogatory answer. Just as this was not the place for China United to present its self-serving view of the merits, it is not the place for Amazon to address and refute it point by point. Amazon fully intends to do so in a motion for summary disposition, should the case make it that far.

As a preview of that motion, Amazon would point out that, for example, China United's argument that Amazon waived any right to insist that China United not use its name for commercial purposes without its consent, as required by the contract, because it did not object when China United put up a welcoming banner for a private meeting on a closed terminal, refutes itself. *See* Mot. at 2-3. That was true even before China United's corporate witness testified directly that the

parties' contract required China United to receive written permission for any such use, which China United never received, and which was rejected when China United sought it. Moreover, even if this theory of implied waiver were a potential defense to the contractual dispute between the parties, which based on China United's own testimony it is not, there is no basis for any notion that it is evidence of some kind of fraud or concealment on Amazon's part.

CONCLUSION

The Motion for a Protective Order should be denied, so that Amazon can fully question a China United corporate witness as to the factual basis of an element necessary to China United's remaining claim.

Respectfully submitted,

_____/ John Longstreth_____

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Counsel for Respondents

January 20, 2026

CERTIFICATE OF SERVICE

I certify that on this 20th day of January, 2026, the aforesaid Opposition to Complainant's Motion for a Protective Order has been filed with the Secretary for the public docket, with a copy to judges@fmc.gov and served on the following counsel of record, as provided by the Initial Order in this proceeding.

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